CITY OF OPA-LOCKA

"The Great City"

CLERK'S ACTION SUMMARY MINUTES
REGULAR COMMISSION MEETING
JANUARY 25, 2012
7:00 P.M.
Opa-locka Municipal Complex
780 Fisherman Street, 2nd Floor
Opa-locka, FL 33054

1. CALL TO ORDER:

Mayor Myra L. Taylor called the meeting to order at 7:00 p.m. on Wednesday, January 25, 2012 on the 2nd Floor of the Opa-locka Municipal Complex, 780 Fisherman Street, Opa-locka, Florida.

2. ROLL CALL:

The following members of the City Commission were present: Vice Mayor Dorothy Johnson, Commissioner Rose Tydus, Commissioner Gail Miller, Commissioner Timothy Holmes and Mayor Myra L. Taylor. Also in attendance were: City Manager Bryan K. Finnie, City Attorney Joseph Geller, and City Clerk Deborah S. Irby.

3. INVOCATION:

The Invocation was delivered by Mayor Myra L. Taylor.

4. PLEDGE OF ALLEGIANCE:

The Pledge of Allegiance was recited in unison.

5. APPROVAL OF AGENDA:

6. APPROVAL OF CONSENT AGENDA AND PULL LIST (deferrals and deletions):

It was moved by Vice Mayor Johnson, seconded by Commissioner Holmes to approve the agenda, consent agenda and pull list.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Tydus	Yes
Commissioner Miller	Yes
Vice Mayor Johnson	Yes
Commissioner Holmes	Yes
Mayor Taylor	Yes

Request to amend the agenda to include the following resolutions under agenda item 16 – New Items:

16-1: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO SUPPORT THE EFFORTS OF THE UNITED STATES ATTORNEY, STATE ATTORNEY, AND LOCAL POLICE TO ESTABLISH A JOINT TASK FORCE FOR ELIMINATING VIOLENT CRIME AND GAME VIOLENCE IN DISTRICT; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by D.J.*

It was moved by Vice Mayor Johnson, seconded by Commissioner Miller to amend the agenda to include the above resolution as item 16-1.

There being no discussion, the motion passed by a 4-1 vote.

Commissioner Holmes	No
Vice Mayor Johnson	Yes
Commissioner Tydus	Yes
Commissioner Miller	Yes
Mayor Taylor	Yes

16-2: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO AUTHORIZE THE CITY MANAGER TO ADVERTISE AND ISSUE A REQUEST FOR PROPOSALS FOR QUALIFIED PROFESSIONAL CONTRACTORS FOR THE RECONSTRUCTION OF MASTER SANITARY SEWER PUMP STATION 11C; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

It was moved by Vice Mayor Johnson, seconded by Commissioner Miller to amend the agenda to include the above resolution as item 16-2.

Mayor Taylor expressed her concern and requested the reasoning as to why this important item was not added to the agenda.

Manager Finnie explained that this item is being added to the agenda on an emergency basis following a recent incident which necessitated quick action to move this project up to get the station completed as soon as possible.

Although she would be supporting this item, Mayor Taylor directed the City Manager to make sure important items are included on the agenda.

There being no further discussion, the motion passed by a 4-1 vote.

Vice Mayor Johnson	Yes
Commissioner Tydus	Yes
Commissioner Miller	Yes

Commissioner Holmes	No
Mayor Taylor	Yes

7. AWARDS/PROCLAMATIONS/ACKNOWLEDGEMENTS:

8. APPROVAL OF MINUTES:

Regular Commission Meeting – 01/11/2012

It was moved by Vice Mayor Johnson, seconded by Commissioner Miller to approve the minutes of the Regular Commission Meeting of January 11, 2012.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Miller	Yes
Commissioner Holmes	Yes
Vice Mayor Johnson	Yes
Commissioner Tydus	Yes
Mayor Taylor	Yes

9. 17th CONGRESSIONAL DISTRICT OF FLORIDA REPORT:

10. STATE SENATORS REPORT:

11. STATE REPRESENTATIVES REPORT:

12. DISTRICT ONE - COUNTY COMMISSIONER REPORT:

Larry Gardener, Community Liaison for Miami-Dade County Commissioner Barbara Jordan (District 1) came forward and provided a reminder on the availability of Mom & Pop grants for small businesses.

Vice Mayor Johnson expressed her appreciation to Commissioner Jordan for her representation on the violence and gang prevention during the meeting with the State Attorney's Office.

13. MIAMI-DADE COUNTY FIRE RESCUE DEPARTMENT REPORT:

Mayor Taylor requested that the City Manager make sure the Fire Department is aware of the new location for the city's commission meetings.

14. PUBLIC PRESENTATION:

1. Joseph L. Kelley of 485 Dunad Avenue, Opa-locka, Florida, appeared before the City Commission to express his appreciation for the continued support in the Martin Luther King, Jr. Annual walk. He suggested that the Commission adopt legislation to make sure that tradition would continue.

He expressed his concerns with the city's pump stations not being addressed in a timely fashion.

He inquired about any new developments on the Cuyahoga property and any Brownfields funding to address it.

He further thanked the Opa-locka Police Department for their Crime Watch efforts; however, he said he would like to see a re-interest in the other areas of the city.

Mayor Taylor said she was under the assumption that the MLK walk was an automatic; but since it's not she would sponsor the resolution.

14a. CITIZENS' FORUM:

1. Johnnie Greene of 2091 Wilmington Street, Opa-locka, Florida, came forward and provided a brief overview of the most recent Opa-locka East Side Neighborhood Crime Watch meeting to address the rumors circulating surrounding the CRA.

2. Doris Greene of 14265 NW 22nd Court, Opa-locka, Florida, appeared before the City Commission and added that the Opa-locka East Side Neighborhood Crime Watch meeting provides positive information.

3. Jeanette Arline of 2324 Service Road, Opa-locka, Florida, came forward and stated that she is charged with taking the minutes and notes for the East Side Neighborhood Crime Watch meeting; but she would like to start recording the meetings to address the rumors.

Vice Mayor Johnson said she was proud to see the East Side Neighborhood Crime Watch because it was one of her initiative's, but it would be beneficial to see the minutes of those meetings included in the packet to the Commission. Of concern was that individuals were discussing the CRA when the CRA is fairly new and there is little knowledge about it.

Ms. Greene requested that the citizens are informed of the CRA meetings so that they too can have an opportunity to attend.

Vice Mayor Johnson directed the City Clerk to make sure the information on future CRA meetings is made available to the citizens. Also, she directed the City Manager to make sure this information is also posted on the city's website along with the meeting minutes.

4. Ronnie King of 12950 Lejeune Road, Opa-locka, Florida, an employee of the city's Public Works Department and President of AFSCME Local 2068 appeared before the City Commission to inform them that the employees are in need of equipment to get the work done.

In order to be fair to the employees and the residents of the city, Vice Mayor Johnson suggested that the protocol and process is adhered to by all employees.

Mayor Taylor stated that she has always been a champion for the Public Works Department and she is truly appreciative of all that the employees in that department do; but she suggested that Mr. King follow the process in place.

Commissioner Holmes also suggested that Mr. King follow the protocol and once that has been exhausted, then the matter could be brought to the Commission.

Commissioner Miller stated that there are a handful of citizens coming before the Commission every two weeks with the same issues. Two weeks ago it was the City Manager, and now it is the City Clerk. She mentioned that the City Clerk's family has been instrumental in this city. She said that every two weeks it's the same handful of citizens coming to the meetings to start problems. Also, the Public Works Department must realize that the city went into the reserves to avoid from laying off any employees and instead of the negativity; they should be bringing forth positive things.

5. Esin Daniel Abia former Building Official for the City of Opa-locka came forward and respectfully protested his termination as the building official for the city. He requested that the Commission look into and investigate the alleged reasons for termination as cited by the City Manager.

6. Evelina Lewis of 601 Perviz Avenue, Opa-locka, Florida stated that she previously appeared before the City Commission on December 14, 2011 to issue a complaint regarding the broken pump station no. 10 on Perviz Avenue, but nothing was done and the noise and vibration still exists. She requested that the city address this issue expeditiously.

Fritz Armand, Director of the City of Opa-locka Public Works Department came forward and explained that the pump was switched; however, this is an electrical pump that cannot be turned off. He indicated that the city is in the process to rehabilitate that pump station which will not be done overnight.

Vice Mayor Johnson stated that what she had just heard from staff was unacceptable. She directed the City Manager to make this pump station a priority.

She stated that whoever was in the audience making comments should cease or should be escorted out by the police because she is tired of the rudeness.

Mayor Taylor requested that respect be giving while the meeting is taking place because she would not tolerate heckling.

Vice Mayor Johnson indicated that she did not want staff speaking with Mrs. Lewis and that the City Manager should take ownership and make an affinitive answer to ensure that the citizen's wellbeing is taken care of. She directed the City Manager to provide the plan of action to address this issue during his report.

Commissioner Holmes recalled the first time Mrs. Lewis came before the Commission she was promised that something would be done to address the concern and now she is back with the

same concern. This falls under the City Manager and the City Manager doesn't know how to get the job done. After hearing giggling from one of his colleagues, he requested to get the same level of respect that he gives to everyone.

7. Dr. Lisa Jones, Co-Chair of the Opa-locka Weed & Seed appeared before the City Commission to request support of their efforts to incorporate and acquire a 501c3 status because it is her understanding that at a previous meeting the Commission needed clarification on this matter. She provided a brief background and overview of the Weed & Seed program.

In reviewing the correspondence provided at the last meeting, Vice Mayor Johnson expressed her frustration relating to the Opa-locka Weed & Seed formulating a 501c3 without the permission of this Commission. Because the City of Opa-locka is the grantee for all grants, the ultimate responsibility falls on the city. She mentioned the fact that the Opa-locka Weed & Seed is registered under Sunbiz with the registered agent being one of the individuals whom the city is paying. That registered agent can shut the whole thing down and the city will have nothing to do with it. She asked the City Manager how did this happen?

Manager Finnie explained that this process moved forward during his early tenure with the city. There was a meeting held in which the Opa-locka Weed & Seed made a decision as to what direction they wanted to head into. The city's staff had questioned them and recommended against it, but the Opa-locka Weed & Seed decided to move forward. He has since released a letter and had a discussion with Mrs. Warren and would like to meet with Weed & Seed to discuss the 501c3, the need to form one, and come up with the plan to submit to the Commission. While the city is the grantee, they are also the fiduciary partner on the deal; therefore, he needs to brief the Commission on the financial consequences of the decision for understanding because this does not need to be an adversarial process, it needs to be a process that starts and ends with this Commission as it goes back to the board.

Vice Mayor Johnson suggested that Dr. Jones work with the City Manager on the concerns in order to move forward so that additional funds could be retrieved.

Dr. Jones added that the articles of incorporation are on Sunbiz; however, the Weed & Seed has not applied for the 501c3 yet. The articles of incorporation were needed in order to apply for the 501c3.

Vice Mayor Johnson spoke about the city's legislation prohibiting this being done without the approval of the City Commission.

Although Weed & Seed was the vision of the city that came through the Opa-locka Police Department in order to make the City of Opa-locka a better place for families to live and work, Dr. Jones said that according to the RFP when the application was filed, the Weed & Seed Steering Committee has autonomy.

Vice Mayor Johnson requested that this conversation cease immediately.

Manager Finnie requested to meet with Dr. Jones to further discuss the concerns relating to the Opa-locka Weed & Seed in order to resolve the issue and move forward.

Mayor Taylor indicated that the City Commission has not received any reports from the Weed & Seed or CET programs, but now she understands the mindset of Weed & Seed.

8. Steven Barrett of 633 Sharar Avenue, Opa-locka, Florida, appeared before the City Commission and stated that he is on the board with Weed & Seed. The minutes of the discussion when the corporation was put together reflects that he stated to the board that it would have to come before the Commission for approval. The US Attorney that attends the meetings made that decision. Because the federal government has their guidelines and the city has its own guidelines, he suggested that the federal government and the city come together on the guidelines so that everything could be in order.

Because the minutes and/or reports are not being submitted to the Commission, Mayor Taylor said she is not aware of what Weed & Seed or the CET programs are doing, and what impact they are having on the community. If the city is the lead in both of these projects, then the Commission should be provided with copies of minutes and/or reports from the Weed & Seed and CET programs.

She requested that Mr. Barrett make sure that the Commission receives a copy of the minutes for the Weed & Seed Steering Committee.

Vice Mayor Johnson asked that Mr. Barrett provide her with the contact information for the representative from the US Attorney's Office. She said she would submit her inquiry to the City Manager. Although the Weed & Seed may have strict guidelines, the city needs to make sure because no one should be dictating to the city.

9. Alvin Burke of 2928 NW 132 Street, Apt. 328, Opa-locka, Florida, appeared before the City Commission and spoke about the previous comments made by a commissioner about escorting a citizen out of the meeting for lack of respect.

Vice Mayor Johnson briefly addressed the comments made by Mr. Burke.

Commissioner Holmes added that the lack of respect is also coming from members of the Commission while on the dais, but everyone should be entitled to respect at all times.

10. John Riley of 2963 NW 135th Street, Opa-locka, Florida, came forward and expressed his concerns about the lift station on NW 135th Street which is creating a health hazard to the surrounding community.

11. Eldridge Redmon of 2766 NW 131 Street, Opa-locka, Florida appeared before the City Commission and spoke in opposition to the first reading ordinance on the agenda rescinding the City Clerk's contract.

Commissioner Holmes mentioned that he was one of the individual's who hired the City Clerk in 1994 and suggested that Mr. Redmon have all the facts before he makes statements before the Commission.

15. ACTION ITEMS (items from consent agenda pull list):

16. NEW ITEMS:

1. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO SUPPORT THE EFFORTS OF THE UNITED STATES ATTORNEY, STATE ATTORNEY, AND LOCAL POLICE TO ESTABLISH A JOINT TASK FORCE FOR ELIMINATING VIOLENT CRIME AND GAME VIOLENCE IN DISTRICT; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by D.J.*

The above resolution was read by title by Attorney Geller.

It was moved by Vice Mayor Johnson, seconded by Commissioner Miller to pass the above resolution.

Vice Mayor Johnson stated that she met with the State Attorney and Commissioner Jordan on January 23, 2012 and Commissioner Jordan is requesting a task force. The State Attorney agreed but asked that the task force is supported by documentation. She recalled the task force that was in place in 2006 which was very active.

There being no further discussion, the motion passed by a 5-0 vote.

Commissioner Tydus	Yes
Commissioner Miller	Yes
Commissioner Holmes	Yes
Vice Mayor Johnson	Yes
Mayor Taylor	Yes

2. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO AUTHORIZE THE CITY MANAGER TO ADVERTISE AND ISSUE A REQUEST FOR PROPOSALS FOR QUALIFIED PROFESSIONAL CONTRACTORS FOR THE RECONSTRUCTION OF MASTER SANITARY SEWER PUMP STATION 11C; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above resolution was read by title by Attorney Geller.

It was moved by Vice Mayor Johnson, seconded by Commissioner Tydus to pass the above resolution.

Vice Mayor Johnson said she is aware that money was reprogrammed for pump station no. 11c and her concern is how the city is spending money. The citizens are looking for a bandaged repair because the city has spent a lot of money on this pump station.

Manager Finnie stated that the above resolution is for a complete rehab and replacement of the pump.

Ezekiel Orji, Finance Director for the City of Opa-locka came forward and stated that the city budgeted and reprogrammed the same amount from year to year.

Mayor Taylor asked, will this fix pump station 11 for good?

Manager Finnie replied, yes.

Commissioner Holmes said that the Commission has heard that response before.

There being no further discussion, the motion passed by a 4-1 vote.

Commissioner Miller	Yes
Commissioner Holmes	No
Vice Mayor Johnson	Yes
Commissioner Tydus	Yes
Mayor Taylor	Yes

17. PLANNING & ZONING:

A. HEARINGS:

B. APPEALS:

18. ORDINANCES/RESOLUTIONS/PUBLIC HEARING:

A. FIRST READING:

1. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA TO RESCIND ORDINANCE NUMBER 06-03, ADOPTING AN EMPLOYMENT AGREEMENT WITH DEBORAH S. IRBY AS CITY CLERK; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by T.H.*

The above ordinance was read by title by Attorney Geller.

It was moved by Commissioner Holmes, seconded by Commissioner Tydus to pass the above ordinance on first reading.

Note: This portion of the minutes is transcribed in verbatim format.

Commissioner Tydus: *I have a question for the attorney but that would depend on the answer that I receive from the sponsor of this ordinance. Could you give me a little...*

Mayor Taylor: *Who are you addressing first?*

Commissioner Tydus: *I'm addressing the sponsor. To the sponsor, what is the justification or the history of you placing this on the agenda and what is your end goal that you want to accomplish? That would help me with the question that I have for the attorney.*

Commissioner Holmes: *After I asked a couple of weeks ago to review this and I took a look at it and I saw the ordinance that was supposed to be prepared for this employee agreement, it doesn't say employee contract, it says employee agreement. But anyway, the ordinance that was passed in March 2006, now one can say that is the beginning of it, one can say that's a sunset, a sunrise; but the ordinance does not spell out a sunset, it does not spell out a sunset. So that's one of the reasons why I looked at that, but as it stands tonight, I'm willing to look at that and let that put a side and just go with the termination of her with a cause or without a cause. Because the same way this gentleman got up her tonight, she and others are responsible for this tonight. She and others are responsible for him last commission meeting to come up here. We don't need our staff people coming at us like this. Uh...like I say...*

(Noise coming from the audience)

Mayor Taylor: *Excuse me, now Mr. Redmon, I don't care if it's true or not, please refrain from talking. Commissioner Holmes.*

Commissioner Holmes: *As I stated earlier, I was one of the persons who hired her as the Vice Mayor in 1994. Myself, Commissioner Barrett and George Lipkins put her in that seat. Over all these years, I supported her, I stood by her when my other colleagues on the dais who wanted to fire her, I went to bet to try to save her job. She knows it, but the past year or two she forgot all of this. She started playing her games, this and that. But I will not get into all that. To my colleagues, Commissioner Tydus, I had so many people say that our City Clerk is so disrespectful to them which I have found out that to be true. But right now tonight, I'm ready to terminate her without a cause just because of what's been going on and my vote would go tonight, whenever you finish, to terminate her without a cause because I rather go ahead and terminate her without a cause and try to pay her these nine (9) months we're trying to pay her then to try to fire her and terminate her with a cause to wind up in court trying to explain this and then to wind up spending more money than what we have here on the books now. You know, it's a shame, it's a shame. I supported her all these years, stood by her side when one, some of my colleagues up here wanted to fire her. If you all been around, you know who I'm talking about. I'm not going to call no names. And Commissioner Holmes went to bet for her, but for her to play her games with me especially last year up to know, this and that, but the things she's been doing, I don't have no more respect for her, no more respect for her. But I'm willing to give her the time of day as long as she's in her office and I'm in my office. But I'm willing tonight to fire her without a cause. I hope that answers some kind of way Commissioner Tydus.*

Commissioner Tydus: *Ok, my question to the City Attorney, the ordinance here, it appears as I interpret it and that's why I need your...I'm not an attorney. The ordinance seems to be in conjunction with the employment agreement. The two go together. Is that correct?*

Attorney Geller: *Yes, ma'am.*

Commissioner Tydus: *I was not in favor of the ordinance in 2006 and the record reflects here on the vote of that ordinance and my main concern at that time was the fact that...Well first of all I never understood an ordinance being necessary. Was an ordinance really necessary and not a resolution? Why was this done by ordinance?*

Attorney Geller: *While I wasn't there at the time, since this contract could run for longer than one (1) year, according to the charter section 157 contracts extending beyond one year must be done by ordinance. And this obviously could have been for a shorter period, but certainly also contemplated that it would run for a longer period of time and I believe that's, not knowing exactly what was in Mr. Jones' mind, but I believe that would be the reason why he would have recommended that it have to be done by ordinance and I would agree with that.*

Commissioner Tydus: *So in adopting this ordinance, we are terminating the City Clerk? Is that correct?*

Attorney Geller: *I don't think that is correct.*

Commissioner Tydus: *Well give me some clarification.*

Attorney Geller: *Yes, ma'am. The ordinance itself...*

Commissioner Tydus: *Now the ordinance and the agreement go together.*

Attorney Geller: *Yes, ma'am. The ordinance is not a model of clarity. The ordinance can best be read by saying that the ordinance authorization by the City Commission for the City Manager with the authorization of the City Commission to execute a contract, an employment agreement with the Clerk and that happened. Therefore, the Clerk now has an employment agreement that was authorized by that ordinance. Rescinding the ordinance does not mean there's not a contract, the contract by its own terms provides that the Commission can take certain actions and that's what Commissioner Holmes was referring to. The contract says that the Commission has the right to terminate the Clerk and then it distinguishes between a termination with cause and a termination without a cause that would have to be done by resolution and the Commission has the ability to do that, but that's not what's on your agenda. The item is to rescind the ordinance, if it passed on first reading, then at the subsequent meeting it could be passed on second reading. I don't necessarily think it is necessary to rescind the ordinance in order for the Commission to exercise its rights under the contract, but neither can I say that there's absolutely no reason why the ordinance ought to be rescinded if it was someone's intention to bring a resolution. Rescinding the ordinance is not a termination, that would have to be done by a resolution but there could be some point to having the ordinance.*

Commissioner Tydus: *Rescinding the ordinance would have to be by resolution?*

Attorney Geller: *No, rescinding the ordinance is done in the same manner that an ordinance is passed. Its two readings, the first reading is here tonight and then if it were to pass on first reading, there's a second reading. Whether or not the ordinance is rescinding the contract itself, there is a contract, it was signed. The Commission authorized it, there is a contract. The contract has provisions in the contract. Pursuant to the contract, the City Commission could act by resolution and the resolution would have to state, if it was a resolution to terminate, whether it was with cause or without cause and Commissioner Holmes has stated that it would be his intention if he brings it that he move for termination without cause. So, rescinding the ordinance is one issue, there would have to be a resolution. Tonight you have first reading on rescinding the ordinance. That is what is before you.*

Commissioner Tydus: *Okay, so in rescinding the ordinance would require a second reading and public hearing to adopt the ordinance. At that time, could the sponsor or whoever present a resolution to deal with the agreement because the agreement doesn't seem to be the real issue.*

Attorney Geller: *The answer to your question is yes, at that time a resolution could be presented. I just want to be clear that there's a contract. The contract allows for the Commission to take action. It is not necessarily the case that you have to rescind the ordinance in order to take action under the contract, but neither can I say there is no reason to rescind the ordinance because lawyers have opinions and sometimes those opinions disagree and that's why we have judges. So this is to rescind the ordinance, a resolution is within the rights of the Commission under the contact, but that is not this item.*

Commissioner Tydus: *Thank you Mr. Attorney and you've heard the...I received the clarity so now it's up to the sponsor as to what he wants to do now that I understand what his end goal is.*

Commissioner Holmes: *Commissioner Tydus, what do you understand him to say?*

Commissioner Tydus: *I understand him to say, if you're end goal, and correct me if I'm wrong, if your end goal is to nullify this agreement, it's not necessary for you to rescind the ordinance. That can be done by resolution. So you would...you could do...uh...*

Attorney Geller: *Commissioner, I'm sorry I've got to, just a small correction. It's not to nullify the agreement, the agreement is an agreement. There are rights granted to both parties under the agreement so it wouldn't nullify the agreement. The Commission has the right under the agreement to bring a resolution and it can do that. It can do that in my opinion even if you don't rescind because you have rights under the agreement, however, that opinion might not hold up, I mean it's my opinion but you know someone may have a different opinion and challenge that in court and that's why we have judges. I cannot say that there is no point to rescinding the ordinance if that's the pleasure of the Commission. I can't say there is not a purpose to it.*

Mayor Taylor: *Excuse me if I may, if I may, there are two things here, Mr. Geller, get close to the mic. What is before us is legislation to rescind an ordinance. Is that correct?*

Attorney Geller: *Yes, ma'am.*

Mayor Taylor: *That's it?*

Attorney Geller: *Yes, ma'am.*

Mayor Taylor: *The other item would come up at a later time.*

Attorney Geller: *Or not, I mean that's the pleasure of the Commission. If someone brings it, it would come up.*

Mayor Taylor: *It can come up at a later time, but right now...*

Attorney Geller: *It is not before you.*

Mayor Taylor: *...we're just rescinding an ordinance.*

Attorney Geller: *Yes ma'am.*

Mayor Taylor: *That's it?*

Attorney Geller: *Correct.*

Commissioner Tydus: *My concern was how much attachment was the agreement to the ordinance. That was my main concern.*

Mayor Taylor: *How much tie in the agreement is to the ordinance? I think what Commissioner Tydus is saying and correct me if I'm wrong, if I'm leading this way, rescinding the ordinance, does that have any effect on the contract? It's like peeling an onion.*

Attorney Geller: *Yes ma'am that could be an argument that could be made. It's not necessarily by own view but it is an argument that could be made.*

Mayor Taylor: *Okay but Mr. Geller, we can only go on your view tonight. We can't go pass these doors yet until we deal with it tonight. Is rescinding this ordinance have an effect on the contract?*

Attorney Geller: *It might very well. I can't say definitively, but it might very well, yes.*

Mayor Taylor: *Can the ordinance be rescinded without touching the contract?*

Attorney Geller: *Yes.*

Mayor Taylor: *And I do apologize Commissioner Holmes, but I wanted to get...lawyers sometimes don't give yes or no answers.*

Attorney Geller: *That's because we're not judges Mayor.*

Mayor Taylor: *We're two dimensional people here. Right or left, up and down, black and white.*

Commissioner Tydus: *I understand now. My question has been answered.*

Vice Mayor Johnson: *I need legal sufficiency. The term that you used was some intention may have been on the attorney. How do you come to the conclusion of someone's opinion, first is deceased and second have no conversation with them. How would you come up with what was the intent?*

Attorney Geller: *I don't know the intent. Let me be clear.*

Vice Mayor Johnson: *So when you stated that it could've been the intention which in this here ordinance and I voted yes then and I have the same understanding now that the letter, the employment agreements just like yours, it has passed a year, right?*

Attorney Geller: *Yes ma'am.*

Vice Mayor Johnson: *And we have not brought it back.*

Attorney Geller: *Yes ma'am.*

Vice Mayor Johnson: *And on several occasions there was a temp for your termination and if we're going to do it for one which you got now three which we said back when James Wright was here that was a contract, these are employment agreements which could've been supported by resolution versus an ordinance.*

Attorney Geller: *If I understand your question, if there was any suggestion that I know what was in Mr. Jones' mind, let me make clear that that was not my point. The fact of the matter is this is a contract as I've said. It seems to me the effect of this ordinance was to authorize the City Manager to sign the employment agreement on behalf of the city.*

Vice Mayor Johnson: *Hold on a second. The City Manager has nothing to do with the Clerk. There are three people according to the Charter that reports to the Commission: the Clerk, the Manager and you. So the City Manager has nothing to do with this. So I think you may have misstated but I want to straighten the record out.*

Attorney Geller: *The contract itself, if you look at the employment agreement, it is signed by the City Manager.*

Vice Mayor Johnson: *I see that.*

Attorney Geller: *He does not have, no manager, she at that time, does not have the authority to sign a contract except pursuant to the express authorization of the City Commission.*

Vice Mayor Johnson: *Hold that thought. And in the ordinance, it's nothing stated. I think this is a human error and the human error, you know, I don't have but two years of law but I was real good in those two years. The signature of the former City Manager that stated on this particular legislation should not have been signed by the City Manager. That's number one. In this package of 2006. Do you have the same information? Do you have the same information? Yes or no?*

Attorney Geller: *I don't know how to answer that question. I'm sorry.*

Vice Mayor Johnson: *Do you have the supported documentation? Do you have this book?*

Attorney Geller: *I have the employment agreement then the ordinance. The employment agreement and the ordinance, I have those.*

Vice Mayor Johnson: *You have the one for 2006 Mr. Geller?*

Attorney Geller: *Yes ma'am, it's in front of me.*

Vice Mayor Johnson: *And who was this signed by?*

Attorney Geller: *The ordinance was signed as always by the Mayor, attested by the Clerk and approved as to form by the City Attorney A. Quinn Jones, III.*

Vice Mayor Johnson: *Okay so where does the City Manager come in to this?*

Attorney Geller: *The employment agreement itself between the City of Opa-locka and Mrs. Irby is executed by the employee, by the City Clerk Mrs. Irby and by Jannie Beverly, City Manager and approved as to form and legal sufficiency by A. Quinn Jones, III, City Attorney.*

Vice Mayor Johnson: *My question again, back to the legislation, where is it stated that the City Manager had to do any signing on this at all?*

Attorney Geller: *It's not.*

Vice Mayor Johnson: *Let me ask you something, when you came in who was the City Manager?*

Attorney Geller: *Most recently when I came in?*

Vice Mayor Johnson: *When you came back the last time?*

Attorney Geller: *Mr. Finnie.*

Vice Mayor Johnson: *Did Mr. Finnie sign your agreement? Absolutely did not.*

Attorney Geller: *No, I have a written contract, just a resolution.*

Vice Mayor Johnson: *Okay, Mr. Finnie did you sign any agreement?*

Manager Finnie: *No, Vice Mayor.*

Vice Mayor Johnson: *So Mr...some of the things that you put on the record, I just need clarification, Mr. Geller. You mentioned about the intent when I know now you can't make an intention decision and that was in error.*

Attorney Geller: *Whatever it was I said, I did not say I knew what was in Mr. Jones' mind.*

Vice Mayor Johnson: *And from your legal sufficient opinion, how can, and I know you can do just cause, without a cause or just cause, but in your experience without a cause, I'm talking about human resources now. Have you ever heard a person...have you ever heard of the Fair Labor Standard Act?*

Attorney Geller: *Yes ma'am.*

Vice Mayor Johnson: *What does it state in there?*

Attorney Geller: *It states a lot of things ma'am, but among other things there are restrictions on what an employer has the ability to do. Employees have protection.*

Vice Mayor Johnson: *Okay, so in your professional opinion, what I hear you say, you can do either. Could you elaborate? Should you terminate an employee without cause, what are some of the possible, because anybody can sue you so forget the sue part because I'm sure mostly everything that happens in Opa-locka, somebody gets sued because that's off the table. What are some of the consequences without cause?*

Attorney Geller: *Well without cause, although it's typically more expensive upfront, it's almost always the safest thing for a public body like a city to do. If you try to terminate someone with cause, all of the grounds, all of the reasons you bring out are subject to question. They can all be brought in the lawsuit, they can all be challenged and the decision can be overturned. When you terminate without cause then it's very difficult to challenge, it may cost a little more upfront because it's a protection for the employee, but in the long run, usually it would save litigation costs and it would save other expenses to the city. Between without and with cause, I almost always recommend when asked that a termination be without cause because proving cause is very difficult.*

Vice Mayor Johnson: *Could you elaborate on an at-will employee?*

Attorney Geller: *Yes, ma'am. An at-will employee has no right for continued employment where someone has a contract and there is a valid contract here, that's not an at-will employee; the rights are as set forth in the contract. And there is a contract here which I believe is a valid contract and therefore, the rights are set forth and any termination would have to be either with or without cause and as I said I almost always recommend that terminations be without cause when someone is determined to do that because a termination with cause could be very difficult to support in court and could be very expensive to defend.*

Vice Mayor Johnson: *Thank you! And I think when the point come to shed light on the difference between the at-will because once you have a contract, you are now saying these are the obligations that we are leading more towards and whether a person asks or not, I think, just like you did in one meeting, I don't know but I know we had, it was interesting and you put everything out there. Oh that's when the Ethics Commission was here, you was just really sharp and you put a lot of things out there on the record so I really think that when in doubt, not let us have to deliberate and all and use that skill that we only get paid for that fifty dollars worth. But you know, put it on our desk so if it's something that maybe kind of in the gray, and you know what I mean in the gray, that you can always be able to explain and if you see legislation come forward, Mr. Geller, I think you need to have that robust dialogue with the sponsor to let each of us know, even if you have to meet with each person separately and let them know the consequences where it could lead us because so often in this city we spend a lot of money unnecessarily because of just not knowing. And I think that's kind of wasteful to the taxpayers and sometimes we champion round the ones we really think that know it and I think that's good to a certain degree. But I think that a lot of this institution knowledge is bull and I think that overall, but I just think that we need to know what the consequences are. I think if you want to terminate someone, I think that you have to have just cause and you need to be able to document it and it need to be an evaluation. And I'm speaking from a senior human resource certified manager and I'm thinking of the liability. If you want to do it, fine. So, I'll stop and I may have some dialogue and want the rights come back, if needed.*

Commissioner Holmes: *Mr. Geller, as we stated before, in this ordinance, it can be interpreted that it does have a sunrise but it doesn't have a sunset. Is that correct?*

Attorney Geller: *It could be.*

Commissioner Holmes: *In the Webster Dictionary, which I don't have one in front of me, is an agreement and contract the same in the Webster's Dictionary?*

Attorney Geller: *Essentially, yes sir.*

Commissioner Holmes: *No! You're saying it's the same thing?*

Attorney Geller: *Yes sir. A contract is an agreement. Not every agreement is a contract, but basically every contract is an agreement.*

Commissioner Holmes: *This is what I was trying to get you to say, Mr. Geller. Because Section 157 of our Charter spells out contract, it doesn't say employment agreement. Section 157 of our Charter spells out contract not employee agreement.*

Attorney Geller: *I believe those are the same; 157 would apply.*

Commissioner Holmes: *I'm not going to argue with you on that because you're the attorney. I'm just a person who has a diploma, but I did pass more than sixth grade. Now, Mr. Geller, you're saying that this particular item if the ordinance passed tonight that I would have to bring a*

resolution back to terminate her under no cause on the termination or with cause on the termination on the agreement.

Attorney Geller: *Yes sir.*

Commissioner Holmes: *I don't see that, but if that's what you say I would have to do.*

Attorney Geller: *Yes sir.*

Commissioner Holmes: *If it passes then I want you to bring that resolution back at the next commission meeting to terminate her with or without cause. If it doesn't pass, I still want you to bring that resolution back to terminate her with or without cause.*

Attorney Geller: *Yes sir, the only thing is between now and then you would need to tell me which way you want to bring, with or without?*

Commissioner Holmes: *Well I'm willing tonight to terminate her without cause.*

Attorney Geller: *I'll draft it that way sir.*

Mayor Taylor: *Any other discussion on this item? Alright we are voting on rescinding ordinance no. 06-03. Is that correct?*

Attorney Geller: *Yes, first reading.*

Note: This concludes the verbatim portion of these minutes.

There being no further discussion on the above ordinance, the motion passed by a 3-2 vote (first reading).

Commissioner Holmes	Yes
Vice Mayor Johnson	No
Commissioner Tydus	Yes
Commissioner Miller	No
Mayor Taylor	Yes

2. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA TO ADOPT A POLICY TO MAKE THE CITY PARKS IN OPA-LOCKA SMOKE-FREE ZONES; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY AND CODIFICATION; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by D.J.*

The above ordinance was read by title by Attorney Geller.

It was moved by Vice Mayor Johnson, seconded by Commissioner Miller to pass the above resolution.

There being no discussion, the motion passed by a 5-0 vote.

Vice Mayor Johnson	Yes
Commissioner Tydus	Yes
Commissioner Miller	Yes
Commissioner Holmes	Yes
Mayor Taylor	Yes

3. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA TO ADOPT A POLICY TO MAKE THE CITY PARKS IN OPA-LOCKA ALCOHOL-FREE ZONES; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY AND CODIFICATION; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by D.J.*

The above ordinance was read by title by Attorney Geller.

It was moved by Vice Mayor Johnson, seconded by Commissioner Miller to pass the above ordinance.

Commissioner Tydus asked whether there was existing legislation in the city's code regarding alcohol-free zones.

Attorney Geller said he was unsure whether it was as clear cut as the legislation before them, but it would be added to whatever regulations already on the books. This is a very simple and clear cut one that would not be subject to any interpretation or any confusion as to the ability to enforce it.

Although the City Attorney is not indicating that there is existing legislation, Commissioner Tydus said that if there is, then this ordinance would be amending?

Attorney Geller explained that the resolution does provide for conflict and repealer which would replace anything the city has that is more convoluted to the extent that it actually conflicted with it.

Mayor Taylor asked, if the park is being rented, will the city hold them to this ordinance?

Attorney Geller advised that there is a specific provision allowing the City Commission only to grant a temporary exemption if there is some recognized activity that they support, but only for a brief period of time.

Mayor Taylor asked, so the individual renting the park will have to come before the Commission for exemption on the smoking and alcohol?

Attorney Geller said there was no exemption on the smoking.

There being no further discussion, the motion passed by a 5-0 vote.

Commissioner Tydus	Yes
Commissioner Miller	Yes
Commissioner Holmes	Yes
Vice Mayor Johnson	Yes
Mayor Taylor	Yes

4. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA TO APPROVE THE REQUEST OF MAGNOLIA APARTMENT, LLC, TO REZONE THE PROPERTY DESCRIBED BY FOLIO 08-2122-003-0040 FROM R-2 (DUPLEX) ZONING DISTRICT TO THE MAGNOLIA NORTH REDEVELOPMENT OVERLAY (MNRO) ZONING DISTRICT WITH SPECIAL EXCEPTIONS TO OPERATE A MULTIFAMILY HOUSING USE AT THE SITE; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY AND CODIFICATION; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above ordinance was read by title by Attorney Geller.

It was moved by Vice Mayor Johnson, seconded by Commissioner Miller to pass the above ordinance.

Vice Mayor Johnson expressed her concerns relating to the language in the overlay ordinance which really open's up Pandora Box allowing anyone to come and start doing overlays or it could set precedence. Additionally, she stated her concerns about allowing individuals to provide information and staff giving their opinion although they are not certified. She said she was not in support of staff's agreement with the documentation provided.

Mayor Taylor asked for an explanation on the above ordinance.

Attorney Geller explained that once the overlay was adopted, instead of simply rezoning an entire area, the overlay permitted people to come before the Commission and asked to be afforded that treatment and in this case a special exception for multi-family housing which otherwise they would not be entitled to. But adopting the overlay does not mean that was the end of it, it just allowed people to come forward on a case by case basis.

After reading the Planning Council meeting minutes, Vice Mayor Johnson said that the board requested special conditions, but she noticed that none of the special conditions are mentioned in the package. Prior to this ordinance coming for second reading, she requested that all those conditions are addressed.

There being no further discussion, the motion failed by a 2-2 vote.

Commissioner Miller	Yes
Commissioner Holmes	No

Vice Mayor Johnson	No
Commissioner Tydus	Out of room
Mayor Taylor	Yes

5. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA TO APPROVE THE REQUEST OF MAGNOLIA APARTMENT, LLC, TO REZONE THE PROPERTY DESCRIBED BY FOLIO 08-2122-003-0610 FROM R-2 (DUPLEX) ZONING DISTRICT TO THE MAGNOLIA NORTH REDEVELOPMENT OVERLAY (MNRO) ZONING DISTRICT WITH SPECIAL EXCEPTIONS TO OPERATE A MULTIFAMILY HOUSING USE AT THE SITE; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY AND CODIFICATION; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above ordinance was read by title by Attorney Geller.

It was moved by Vice Mayor Johnson, seconded by Commissioner Miller to pass the above ordinance.

Vice Mayor Johnson stated to both the City Attorney and the City Manager that this overlay ordinance does not reflect the special exceptions and this information must be included. Additionally, the city did not prepare the document and staff is recommendation what another entity had provided.

Manager Finnie requested to defer the above ordinance to the next meeting.

Mayor Taylor said that the City Manager was pulling 18A5 and fixing 18A4.

B. SECOND READING/PUBLIC HEARING:

C. RESOLUTION/PUBLIC HEARING:

19. ADMINISTRATION:

CONSENT AGENDA:

1. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA OPPOSING ANY CHANGE TO THE NAME OF OPA-LOCKA EXECUTIVE AIRPORT; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by M.T.*

2. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA TO AUTHORIZE THE CITY MANAGER TO ENTER INTO AND EXECUTE AN AGREEMENT WITH BECKER & POLIAKOFF, PA, TO PROVIDE STATE LOBBYING SERVICES FOR A PERIOD STARTING RETROACTIVELY FROM THE END OF THE PREVIOUS AGREEMENT AND ENDING DECEMBER 31, 2012, IN A FORM

ACCEPTABLE TO THE CITY ATTORNEY, IN A TOTAL AMOUNT OF $69,999.84, PAYABLE FROM ACCOUNT 19-519312; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above consent agenda resolutions were read by title by Attorney Geller.

It was moved by Vice Mayor Johnson, seconded by Commissioner Holmes to pass the consent agenda resolutions.

The motion passed by a 4-1 vote.

Commissioner Miller	Yes
Commissioner Holmes	No
Commissioner Tydus	Yes
Vice Mayor Johnson	Yes
Mayor Taylor	Yes

A. CITY MANAGER'S REPORT:

Manager Finnie announced Officers Payoute and Holborrow LEO nominations resulting in Officer Payoute being the recipient of the award.

He continued by reporting that the City of Opa-locka was placed on the 2013 small matching historic preservation grant priority funding list for $50,000.00. He received the mold report for Historic City Hall and based on his review he is recommending the city continues having its meeting at the Opa-locka Municipal Complex. He would be providing a rehabilitation plan for the Historic City Hall the following month. He provided details for the $2,000,000.00 Historic Preservation Grant awarded by Miami-Dade County.

He further announced the City of Opa-locka Parks & Recreation Football Banquet on Saturday, January 28, 2012 at the Carol City High School auditorium. He highlighted a memorandum sent to the Commission relating to a number of priority projects the city is currently working on.

Vice Mayor Johnson asked if the City Manager is making progress on the 30 day timeline initiatives previously mentioned which included the railroad track and SR9.

Manager Finnie said that the city is making progress with the Charter amendments, the railroad tracks and SR9.

Commissioner Miller asked for an update the Helen L. Miller/ Segal Park project.

Manager Finnie stated that a meeting will be held in the near future with the community advisory board for direction, but the city is ready to go. Because the Segal Park issue was raised at the last meeting, he said that the city is on track.

Commissioner Miller asked if the city still conducted the employee drug testing?

Manager Finnie replied, yes.

Commissioner Miller asked that the City Manager bring up the Chief of Police.

Manager Finnie requested that Chief Cason be provided with a portable microphone due to health issues preventing her from getting up.

Commissioner Miller address Chief Cason about a previous disagreement she and the mayor had several meetings ago and the Chief sent the police officers to the front. She said that was very disrespectful and she didn't appreciate it at all. She stated to the City Manager that she would hope this would never happen again.

Commissioner Holmes applauded the Opa-locka Police Department for the excellent job resulting in the nominations of several police officers at the LEO Awards Ceremony.

Commissioner Tydus informed the City Manager of the serious raccoon problem on Sharar Avenue, Dunad Avenue and Jann Avenue between NW 27th Avenue and the 900 block. Also, there is still a stray dog problem in the city and she doesn't know if Miami-Dade County was been notified.

Vice Mayor Johnson advised Commissioner Tydus that Miami-Dade County is no longer picking up dogs.

Manager Finnie said he would send a letter to the Mayor of Miami-Dade County Mayor and request assistance in that area.

Commissioner Tydus said she was also concerned about Code Violations for vehicles and boats on Sharar Avenue which had been going on for years. She requested that the City Manager report back by the next commission meeting as the disposition of those same violations. She said she would be providing the addresses to the City Manager in writing.

Vice Mayor Johnson stated that the 2nd Floor of the Opa-locka Municipal Complex is reserved for the OpaSteppers on Fridays from 6:30p.m. – 8:00p.m. She directed that the City Manager make sure there is not a conflict in bookings.

She continued by requesting that the City Manager make sure all of the city departments have recycling containers.

She further stated that through the whistle blowers act, employees are telling her that individuals and residents can go into the city refrigerators for employees. She requested that signs be posted to make sure everyone is washing their hands; however, citizens should not be allowed to just come in and go into the city refrigerators. She added that signs should also be posted in the restrooms to make sure everyone is washing their hands.

Commissioner Holmes questioned the City Manager about the memorandum dated January 23, 2012 regarding an Interim Building Director. He asked, what happened to the Building Director?

Manager Finnie stated that the Building Official is no longer with the city. This is a personnel issue that may be subject to future litigation.

Commissioner Holmes asked Attorney Geller if the response by the City Manager to his question was a sufficient answer.

Attorney Geller said that the question is whether the answer was sufficient to him.

Commissioner Holmes said the answer was not sufficient to him because he wants to know what happened to the city's Building Director.

Manager Finnie replied, that individual was terminated last Friday.

Mayor Taylor asked for an update on Johnson Controls.

Manager Finnie explained that the city is still having discussion with the city's attorney Mr. Kramer and trying to negotiate a way to develop a system that works on behalf of the City of Opa-locka. He briefly provided an overview of the memorandum submitted to the Commission regarding this matter.

Mayor Taylor asked, was there a warranty on the meters where the company would be responsible for coming back and correcting those items?

Attorney Geller stated that the warranty applies to certain issues, but there are things that is does not apply to that have proven problematic. He said he would be happy to brief individual members of the Commission on this.

Mayor Taylor stated that she and the City Manager don't have to go back and forth with Sherbondy Park. She asked, is Sherbondy Park finished?

Manager Finnie indicated that the building is about 95% complete. The city is waiting on electrical issues and obtaining a temporary Certificate of Occupancy approved by DERM.

After reviewing the memorandum submitted to the Commission by the City Manager regarding Sherbondy Park, Mayor Taylor said she didn't like the tone of the response because the City Manager indicated "I will support any relocation to a viable location as a cost saving measure, but I cannot support any action that will result in a financial burden to the City of Opa-locka such as relocating to a building funded by the CDBG". She said she was not interested in what the City Manager supports or what he doesn't support because the orders come from the Commission to the City Manager. Therefore, the City Manager not supporting is not an issue and is irrelevant. The memorandum provided to the Commission was from the executive director, but the memorandum she provided to Attorney Geller was from the county attorneys. She said she was surprised Attorney Geller has not put this issue to rest because it is still in the air. The

Commission told the City Manager to look into it and at the very least Mr. Finnie should have given them at least two or three options and not just stay right on Sherbondy Park. The money being paid for rent at Town Center is the people's money and it is money that can be taken to give raises to the employees making $30,000.00 or less. She recommended that the City Manager bring back options to the Commission for relocating.

She continued by saying that she expects the City Attorney to put this issue to rest because he had the notice long enough time to contact the county attorneys.

Attorney Geller said he had spoken personally to the county.

Mayor Taylor said that the City Attorney has not provided a written report and she is not prepared for him to give a verbal report, but she wants to put this issue to rest and do what is needed to get out of the building. Also, she stated to the City Attorney that she doesn't want to pass the time because there is a time limit that the city is in this lease agreement with Town Center and she wants to make sure everyone has ample time.

She suggested that the City Manager find money to repair the roof at Historic City Hall because if the city doesn't at least repair the roof that building will not last to 2013. There are historical roofers that can provide estimates for the City Manager to bring back to the Commission.

After hearing Mayor Taylor give a directive which she hopes staff would yield to, Vice Mayor Johnson suggested that the directive be put in a resolution so that the entire Commission can agree to it and have input. Although she would love to see the employees get raises, but at this time she is thankful the city was able to keep all of its employees. There is infrastructure that needs to be done and the city must come up with a five year strategic plan.

Commissioner Tydus recalled a previous administration providing the Commission with options for relocating.

Mayor Taylor directed the City Manager to pull that information and provide it to the Commission. Also, she asked the Commission if they had that information available to provide it to the Commission.

She directed the City Attorney to draft a resolution to bring before the City Commission.

She suggested that the Commission visit the Sherbondy Park building prior to the next commission meeting more specifically the 2nd floor.

Manager Finnie apologized for not inviting everyone over to the new building, but he was waiting for the elevator and the electricity to be in so that he can get everybody to the 2nd floor. But right now, there is access to the 1st floor which is impressive.

Mayor Taylor stated to the City Manager that the roof at Historic City Hall is vital. The roof is key, but everything else needs restoring also so the city will still have that 2 Million Dollars.

B. ACCOUNTS PAYABLE:

Ezekiel Orji, Finance Director for the City of Opa-locka came forward and stated that the city's financial reports are he included in the booklet.

20. OFFICIAL BOARD REPORTS:

21. CITY ATTORNEY'S REPORT:

Attorney Geller informed the Commission that he would be calling upon them shortly for an executive session on another case involving two former police officers who were terminated by the city. He provided a brief status of the case to the Commission.

Commissioner Holmes stated that at the last meeting he presented a list of charges for the City Manager. He provided a copy of the charges to the City Attorney so that he could bring back a resolution at the next meeting giving the City Manager the opportunity to respond to the charges and to remove him as City Manager.

Vice Mayor Johnson expressed her concern with the City Attorney as the parliamentarian allowing employees to come before the Commission with employee issues that put the city in harms way with litigation. She requested that the City Attorney provide a written response on this issue.

She continued by indicating that there is a liability entering the Sherbondy Park building without the Certificate of Occupancy. She said she is appalled that the City Attorney and City Manager know this information, but don't take the liberty to put it on the record or put someone in the position to say that's not right.

She further stated that the appointed officials should focus on doing their jobs and not on having the three votes from the Commission. She said that she'd seen some decision lately that the City Attorney has not stepped in and done due diligence.

Commissioner Tydus stated that at the last commission meeting the City Attorney and City Clerk were directed to provide the Commission with a draft of the Charter Amendments.

Attorney Geller informed the Commission that the direction was to bring it back for the first February meeting. In fact, he met with the City Clerk, City Manager and Attorney Gilbert to review a draft and he expects that the deadline will be met. He asked whether or not the Commission would like for the draft to be included in the package or provide the draft to allow for individual meetings with the Commission prior to putting in the package.

Mayor Taylor expressed her concern with receiving important information the day of the meeting and suggested that all information is provided prior to the Commission Meeting to allow for review.

Attorney Geller agreed to provide the draft charter amendments to the Commission in advance, but it is not ready yet because it needs review.

Mayor Taylor recalled asking the City Attorney and City Clerk if the first meeting in February provided adequate timing to submit the draft. She asked, if that was not enough time then the City Attorney needs to speak up?

Attorney Geller preferred to have the draft on public discussion for the second meeting in February, but between now and the next commission meeting he would schedule individual meetings with each commissioner before putting the document out to the public.

The majority members of the City Commission suggested that a workshop is held to discuss the draft charter amendments.

22. CITY CLERK'S REPORT:

Clerk Irby reported that she had done a Public Service Announcement for the Presidential Primary Election on January 31, 2012 and it is currently being aired on the city's cable channel 77.

Vice Mayor Johnson requested that the City Clerk schedule training for the newly appointed Planning Council members.

Mayor Taylor asked if the 3 vacancies on the Charter Review Board would be essential for the charter amendments.

Attorney Geller replied, not at all. The Charter Review Board only does revisions to the Charter and what is being proposed is a new charter so they are not related.

23. MAYOR/COMMISSION REPORT:

Commissioner Miller reported her attendance at the Martin Luther King, Jr. walk in Opa-locka, the 5000 Role Models MLK breakfast and the MLK parade in Liberty City. She also attended the Miami-Dade County Board of Director's meeting at the Rusty Pelican, Commissioner Tydus' Health Fair and Badge Day at North Miami Church.

Commissioner Holmes reported his attendance at the LEO Awards Ceremony on January 21, 2012 and commended the Opa-locka Police Department and Chief of Police for a job well done.

Vice Mayor Johnson reported her attendance at Commissioner Tydus' Health Fair and the Miami-Dade County League of Cities Board of Directors Meeting.

She announced TPOE's MLK essay scholarship contest open to all Miami-Dade County School students and the availability of applications for public service awards. The gala is scheduled to be held on March 17 at the Marriot Biscayne Bay.

She stated that she met with the State Attorney and the US Attorney on public safety issues.

She further asked that the CET program support her with the Community Choir because the CET program and Opa-locka Weed & Seed is the city's initial community initiative for human services network.

Commissioner Tydus stated that she along with her colleagues attended the 5000 Role Models MLK Breakfast and the MLK parade in Liberty City.

She thanked everyone for making the Sanctity of Human Rights Observance in Opa-locka a success. Following that event, she attended the Sanctity of Human Rights Rally down south at the Florida Baptist Children's Hall.

Mayor Taylor thanked Nelson Rodriguez and the IT Department for their hard work in the set up of the 2nd Floor for the commission meetings and having the meetings live via the city's website.

She reported her attendance at the Miami-Dade County League of Cities Board of Directors Meeting and the MLK parade in Liberty City.

She reminded the Commission of the upcoming CRA Board meeting on February 8, 2012 at 6:00 p.m.

Attorney Geller stated that there would be a public hearing on the CRA redevelopment plan.

Mayor Taylor announced the State of the City Address on Friday, January 27, 2012 at 7:00p.m. in front of Historic City Hall.

24. OFFICIAL BOARD APPOINTMENTS:

25. ADJOURNMENT:

There being no further business to come before the City Commission, it was moved by Vice Mayor Johnson, seconded by Commissioner Holmes to adjourn the meeting at 10:10 p.m.

MAYOR

ATTEST:

CITY CLERK